

25STCP02056 25STCP02056

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-04

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Case Number: 25STCP02056 Hearing Date: August 4, 2026 Dept: 224

English v. Progressive Insurance Company

TENTATIVE RULING

The Court takes the hearing of Petitioner's Motion to Compel Arbitration off calendar as MOOT.

ANALYSIS

Petitioner Kevin English filed this Petition on June 3, 2025, seeking an order compelling uninsured/underinsured motorist arbitration of his claim arising from a September 28, 2023 hit-and-run collision that occurred while he was driving for Uber Technologies, Inc., the named insured under Respondent's policy, and appointing a neutral arbitrator from among three proposed candidates.

Respondent Progressive Insurance Company has filed a response and non-opposition. Respondent does not dispute the existence or enforceability of the UIM arbitration provision, does not dispute liability, and does not oppose participation in an arbitration proceeding.

Accordingly, the relief the Petition requests has already been obtained by agreement of the parties. Nothing remains for this Court to compel.

Conclusion

Accordingly, the Court hereby takes the hearing of Petitioner's Motion to Compel Arbitration off calendar as MOOT.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.